

IN THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION
BENGALURU URBAN, KARNATAKA

Consumer Complaint No: CC/1042/2026

Date of Order: 08-Oct-2026

BETWEEN:

Mr. Amit Desai

Residing at: Koramangala, Bengaluru - 560034

... COMPLAINANT

AND:

Star Health & Allied Insurance Co. Ltd.

Branch Office: M.G. Road, Bengaluru

... OPPOSITE PARTY

ORDER / JUDGMENT

1. The Complainant has filed this complaint under Section 35 of the Consumer Protection Act, alleging deficiency of service by the Opposite Party for wrongfully repudiating a cashless health insurance claim (Claim ID: SH2026-99120) amounting to INR 45,000 for hospitalization related to Dengue Fever.
2. The Opposite Party rejected the claim citing 'Non-disclosure of pre-existing disease (Hypertension)'. However, the Complainant provided medical records proving that the current hospitalization for Dengue is entirely unrelated to Hypertension.
3. Upon reviewing the arguments and medical records, this Commission finds that the repudiation of the claim is arbitrary and constitutes a deficiency in service. The IRDAI guidelines strictly prohibit rejecting unrelated acute illness claims based on pre-existing lifestyle diseases unless a direct medical correlation exists.

ORDER:

The Opposite Party is hereby directed to:

- Compliance shall be made within 45 days of this order.

Member

District Consumer Commission